

Articles of Incorporation (Required Civil Code Sec. 4525)

Autumn Terrace at William Owners Association

Received 1 - 6 pages

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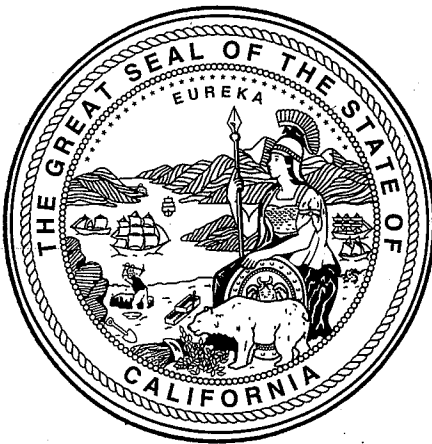
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State of California
Secretary of State

I, BRUCE McPHERSON, Secretary of State of the State of California, hereby certify:

That the attached transcript of 3 page(s) has been compared with the record on file in this office, of which it purports to be a copy, and that it is full, true and correct.



IN WITNESS WHEREOF, I execute this certificate and affix the Great Seal of the State of California this day of

MAR 08 2006

A handwritten signature in cursive script, reading "Bruce McPherson".

BRUCE McPHERSON
Secretary of State

FEB 28 2006

**ARTICLES OF INCORPORATION
OF
AUTUMN TERRACE AT WILLIAM
OWNERS' ASSOCIATION**

**ARTICLE I
NAME**

The name of the corporation is AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION.

**ARTICLE II
PURPOSES OF THE CORPORATION**

This corporation is a nonprofit mutual benefit corporation organized under the Nonprofit Mutual Benefit Corporation Law. The purpose of this corporation is to engage in any lawful act or activity, other than credit union business, for which a corporation may be organized under such law. This corporation is an association formed to manage a common interest development under the Davis-Stirling Common Interest Development Act. The common interest development is located at East William St. and South 22nd St., San Jose, California 95116-0000. The corporation has not yet established a corporate office and has no managing agent.

This corporation does not contemplate pecuniary gain or profit to its Members. The specific and primary purposes for which the corporation is formed are to provide for management, administration, maintenance, preservation and architectural control of the Lots and Common Area within the real property ("Project") situated in the City of San Jose, County of Santa Clara, State of California, commonly known as Autumn Terrace at William, a common interest development of the type commonly referred to as a planned development and to promote the health, safety and welfare of all residents within the Project and such additions as may hereafter be brought within the jurisdiction of the corporation for those purposes, all according to that certain Declaration of Covenants, Conditions and Restrictions of Autumn Terrace at William ("Declaration") recorded or to be recorded with respect to the Project in the Official Records of the County of Santa Clara, State of California.

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ARTICLE III

LIMIT ON POWERS

Notwithstanding any statement herein to the contrary, the corporation shall not engage, except to an insubstantial degree; in any activity or exercise any power that is not in furtherance of its specific and primary purposes. This corporation is intended to qualify as a homeowners association under the applicable provisions of Section 528 of the United States Internal Revenue Code ("IRC") and of Section 23701t of the Revenue and Taxation Code of the State of California ("R&TC"), as each may be amended from time to time. No part of the net earnings of this corporation shall inure to the benefit of any private individual except as expressly provided in IRC Section 528 and R&TC Section 23701t with respect to the acquisition, construction or provision for management, maintenance and care of the Project, other than by a rebate of excess assessments.

ARTICLE IV

GOVERNANCE

The rights of Members, number of Members, manner of election of the Directors and all other matters concerning the operation and governance of the corporation shall be as set forth in the Bylaws.

ARTICLE V

AGENT FOR SERVICE OF PROCESS

The name and address of the corporation's initial agent for service of process is:

Chris Reder
c/o KB Home South Bay, Inc.
6700 Koll Center Pkwy, Suite 200
Pleasanton, CA 94566

ARTICLE VI

AMENDMENTS

Amendments to these Articles of Incorporation shall require the affirmative vote or written assent of the Members as follows:

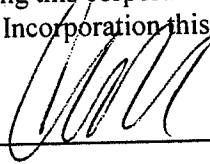
- A. Fifty-one percent (51%) of all Directors; and
- B. 1. When a one class voting structure is in effect:
 - (i) Fifty-one percent (51%) of the total voting power of all Members; and

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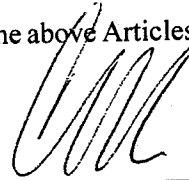
- (ii) Fifty-one percent (51%) of the total voting power of all Members other than Declarant; or
2. When a two class voting structure is in effect, fifty-one percent (51%) of the total voting power of each class of Members.

IN WITNESS WHEREOF, for the purpose of forming this corporation under the laws of the State of California, the undersigned has executed these Articles of Incorporation this 27th day of February, 2006.



Name: Chris Reder

I hereby declare that I am the person who executed the above Articles of Incorporation and that such instrument is my act and deed.



Name: Chris Reder